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Index

- Introduction
- Significance of Sections 9 & 17 of the Arbitration and Conciliation Act, 1996
- Common Objectives of Section 9, 17, and Emergency Arbitration
- Emergency Arbitration as Interim Relief
- Recognition of Emergency Arbitration by Arbitration Centres and Institutions
 - **Amazon.com NV Investment Holdings LLC v. Future Retail Ltd. (AIR 2021 SUPREME COURT 3723)**
 - **Raffles Design International India Pvt. Ltd. v. Educomp Professional Education Ltd. (2016 SCC OnLine Del 5521)**
 - **Ashwani Minda v. U-Shin Ltd., (AIR 2020 (NOC) 953 (DEL.))**
- Conclusions and Suggestions

EMERGENCY ARBITRATION: THE NEW INTERIM PARADIGM

INTRODUCTION

Emergency Arbitration (“EA”) is a procedural mechanism that enables a party to seek urgent interim relief even before a Arbitral Tribunal is constituted. In the context of commercial Arbitration, parties often face situations where waiting for the constitution of the Tribunal takes weeks or months and could cause irreparable harm, dissipation of assets, or damage to rights and interests. In such cases, the traditional Arbitration process may not offer timely protection, and recourse to Domestic Courts might be impractical, especially in international disputes where parties are located across jurisdictions. EA fills this gap by allowing a specially appointed Emergency Arbitrator to grant provisional measures to protect the party’s rights pending the establishment of the main Arbitral Tribunal. This mechanism has been recognised and incorporated into the Institutional Arbitration Rules of many leading arbitral institutions across the world.

The importance of Emergency Arbitration lies primarily in its speed, efficiency, confidentiality, and focus on urgent relief. In many commercial disputes, especially those involving cross-border transactions or high-value contracts, the potential for harm increases with every passing day. Courts, due to procedural delays or jurisdictional challenges, may not be able to provide immediate interim protection. Emergency Arbitration offers a

fast-track process, often with decisions rendered within a few days or weeks, enabling parties to preserve the status quo, prevent dissipation of assets, preserve evidence, or secure contractual rights before the Arbitral Tribunal is formally in place. Such effectiveness makes EA an essential tool in modern commercial dispute resolution.

The proposed Arbitration and Conciliation (Amendment) Bill, 2024 seeks to address this by introducing section 9A, which formally recognises emergency arbitration and extends enforceability to foreign-seated emergency awards. If enacted, the reform would bring India closer to leading arbitration jurisdictions and signal its commitment to providing effective interim protection across borders. The proposed Arbitration and Conciliation (Amendment) Bill, 2024, with its draft section 9A formally recognising emergency arbitration and extending enforceability to foreign-seated awards, may provide the clarity required. Until then, the enforceability of innovative emergency measures in India will remain a contested and evolving field.



SIGNIFICANCE OF SECTIONS 9 AND 17 OF THE ARBITRATION AND CONCILIATION ACT, 1996: UNDERSTANDING INTERIM RELIEFS

Interim reliefs are critical to preserving the rights of parties and safeguarding the subject-matter of disputes while an arbitral process unfolds. The Arbitration and Conciliation Act, 1996 (**hereinafter “the Act”**) empowers both Courts and Arbitral Tribunals with authority to grant such reliefs under Section 9 and Section 17, respectively. These provisions reflect the legislative intent to balance judicial assistance and party autonomy, ensuring that urgent protection is available at different stages of Arbitration without compromising the efficacy of the dispute resolution mechanism.

Section 9 of the Act vests Indian Courts with broad powers to grant interim measures of protection to parties involved in Arbitration. Specifically, a party may make an application to a Court before commencement of Arbitration, during the arbitral proceedings, or even after an award has been passed but before its enforcement under Section 36. The types of interim reliefs that Courts may grant include, without limitation, the preservation, custody, or sale of goods which are the subject-matter, securing the amount in dispute, detention or inspection of property, interim injunctions, and appointment of receivers. When granting such reliefs, Courts exercise powers analogous to those available under the Civil Procedure Code in relation to matters before the Court. Once an Arbitral Tribunal has been constituted, the Court shall not entertain an application for interim relief unless it is satisfied that the remedy available under Section 17 of the Act may not be effective or efficacious in the particular circumstances of the case. This provision reflects the pro-arbitration emphasis of the Act, directing parties towards the Arbitral Tribunal once it is in place and reducing unnecessary judicial intervention.

In contrast, Section 17 of the act empowers the Arbitral Tribunal itself to grant interim measures of protection once constituted and throughout the pendency of arbitral proceedings. Under this section, at the request of a party and unless otherwise agreed, the Tribunal may order interim protection in relation to the subject matter of the dispute. These measures include securing the amount in dispute, preserving goods or evidence, ordering interim injunctions, and any other protection the Tribunal considers necessary or just. Importantly, under Section 17(2), interim orders passed by the Arbitral Tribunal are deemed to be orders of a Court for all purposes and are enforceable under the Code of Civil Procedure, 1908.



COMMON OBJECTIVES OF SECTION 9, SECTION 17 AND EMERGENCY ARBITRATION

At their core, Section 9, Section 17 of the Arbitration and Conciliation Act, 1996 and Emergency Arbitration (EA) share the common objective of enabling parties to obtain interim relief to protect rights and the subject-matter of a dispute. In this sense, Section 9 (Court-based interim relief), Section 17 (tribunal-based interim relief) and Emergency Arbitration function as protective mechanisms ensuring that Arbitration remains fair, efficient and effective even when urgent issues arise. All three mechanisms respond to time-sensitive needs they allow parties to seek orders such

as preservation of assets, injunctions, evidence protection, or security for the amounts in dispute. Although delivered by different forums (Courts, arbitral Tribunals or Emergency Arbitrators), the underlying purpose remains the same to avert situations where a delay might render final relief meaningless or unenforceable. Additionally, each mechanism respects party autonomy. Section 17 arises from the Arbitration agreement and chosen procedure, while the inclusion of EA is typically through institutional Arbitration rules agreed by parties at contract formation. Section 9 reflects a statutory safety net when Tribunal relief is unavailable or insufficient. Thus, despite procedural differences, all mechanisms are structured around preserving fairness and ensuring that Arbitration is practically effective.



EMERGENCY ARBITRATION AS INTERIM RELIEF

Emergency Arbitration is widely understood as a mechanism for granting interim, protective relief, and not a determination of substantive rights. The emergency Arbitrator does not adjudicate the merits of the dispute, rather, the role is confined to granting urgent measures necessary to preserve the status quo until the constitution of the regular arbitral Tribunal.

An Emergency Arbitrator functions within a strictly limited mandate. Institutional

rules governing Emergency Arbitration make it clear that the Emergency Arbitrator's authority exists only until the constitution of the regular Arbitral Tribunal. Once the Tribunal is formed, the Emergency Arbitrator ceases to have jurisdiction and becomes *functus officio*. For instance, under the SIAC Rules, an Emergency Arbitrator must issue an order within a short prescribed period (typically 14 days from appointment), and such order remains subject to review, variation or vacating by the subsequently constituted Tribunal. Similarly, the ICC Arbitration Rules provide that emergency measures are binding on the parties but automatically cease to bind if the claimant fails to commence Arbitration within the stipulated time or once the Tribunal modifies or annuls them.

The temporary nature of this mechanism reinforces that Emergency Arbitration is a stop-gap protective device, not a parallel adjudicatory structure. The Emergency Arbitrator cannot extend the life of their own order indefinitely; continuation, modification, or confirmation of interim protection lies exclusively within the powers of the duly constituted Arbitral Tribunal under Section 17 of the Arbitration and Conciliation Act, 1996. Thus, the doctrine of *functus officio* ensures that Emergency Arbitration remains confined to urgent, time-bound intervention and does not encroach upon the jurisdiction of the main arbitral Tribunal.

The word "emergency" is not decorative signifies limited time and limited power. Accordingly, the expression "emergency" reflects a restricted mandate both in duration and authority. The Emergency Arbitrator may grant only time-sensitive protective relief and cannot undertake final adjudication or exercise continuing supervisory powers over the dispute.

A party seeking urgent interim or conservatory relief under the Emergency Arbitration mechanism may initiate proceedings by filing an Application for appointment of an Emergency Arbitrator before the Arbitral Institution, with simultaneous notice to the opposite party. Such application is required to briefly set out the nature of the dispute, the relief sought, and specific circumstances demonstrating the urgency necessitating immediate intervention prior to the constitution of the Arbitral Tribunal. Upon submission of the prescribed Application and payment of requisite fees, the institution proceeds with the expedited appointment of an Emergency Arbitrator, who thereafter determines a compressed procedural schedule for filing pleadings, documents, and conducting hearings. The Emergency Arbitrator affords both parties an opportunity of hearing and passes a reasoned written order granting or refusing interim measures within the stipulated timeline.

In India, the Supreme Court in **Amazon.com NV Investment Holdings LLC v. Future Retail Ltd. (AIR 2021 SUPREME COURT 3723)** authoritatively held that an Emergency Arbitrator's order under the SIAC Rules is enforceable under Section 17(1) of the Arbitration and Conciliation Act, 1996. The Court clarified that such an order is fundamentally in the nature of an interim measure and derives its enforceability from the statutory framework recognising Tribunal-ordered interim relief. Importantly, the Court did not treat the emergency award as a final arbitral award under Section 34, but as an interim protective direction.

Earlier, the Delhi High Court in **Raffles Design International India Pvt. Ltd. v. Educomp Professional Education Ltd. (2016 SCC OnLine Del 5521)** examined

the status of an emergency award rendered under the SIAC Rules. Although the Court held that such an award was not directly enforceable under Part I of the Act at that stage, it recognised the conceptual validity of Emergency Arbitration as a form of interim relief, leaving parties free to seek Section 9 protection.

Similarly, in **Ashwani Minda v. U-Shin Ltd.**, (*AIR 2020 (NOC) 953 (DEL.)*) the Delhi High Court reaffirmed that Emergency Arbitration proceedings are distinct from final arbitral adjudication and operate within a limited, pre-tribunal framework.



RECOGNITION OF EMERGENCY ARBITRATION BY ARBITRATION CENTRES AND INSTITUTIONS

Emergency Arbitration has gained widespread institutional recognition across leading international and domestic arbitral institutions as an essential mechanism for granting urgent interim relief prior to constitution of the Arbitral Tribunal. Under most institutional rules, an emergency arbitrator is appointed within one or two days of the application. The arbitrator typically issues an order within 7 to 14 days. At the international level, institutions such as the International Chamber of Commerce (ICC), Singapore International Arbitration Centre (SIAC), Hong Kong

International Arbitration Centre (HKIAC), and the London Court of International Arbitration (LCIA) have incorporated detailed emergency Arbitration procedures within their institutional rules. Institutions like SIAC require appointment within one business day, with a decision within 14 days. The SCC requires appointment within 24 hours and decision within five days. These provisions allow parties to obtain expedited interim measures typically within a short time frame, thereby strengthening Arbitration as an effective alternative to Court-based interim remedies.

In India, institutional acceptance has also evolved significantly. Arbitration centres such as the Delhi International Arbitration Centre (DIAC), Mumbai Centre for International Arbitration (MCIA), and the International Arbitration and Mediation Centre Hyderabad (IAMC) have introduced Emergency Arbitration provisions within their procedural frameworks. The MCIA, through Rule 19 of its 2025 Rules, provides for appointment of an emergency arbitrator within one business day and requires a decision within fourteen days. The DIAC under Rule 14 of its 2023 Rules, allows appointment within two days and requires a decision within fourteen days. Other centres such as the Nani Palkhivala Arbitration Centre have followed similar models. This institutional adoption reflects India's gradual alignment with global Arbitration practices and reinforces party autonomy in securing urgent interim protection without immediate Court intervention. The growing recognition of Emergency Arbitration by arbitral institutions demonstrates its acceptance as a standard procedural safeguard in contemporary commercial Arbitration.

The tests applied are similar to those used by Indian courts under Section 9: (a) a strong prima facie case (*fumus boni iuris*),

(b) imminent or irreparable harm (*periculum in mora*), and (c) balance of convenience in favour of the applicant. Reliefs may include freezing injunctions, anti-suit injunctions, orders for deposit of money, or preservation of evidence.

CONCLUSION & SUGGESTION

Emergency Arbitration has emerged as an effective mechanism for granting urgent interim relief before the constitution of an Arbitral Tribunal. Judicial recognition in India, particularly through *Amazon.com NV Investment Holdings LLC v. Future Retail Ltd.*, has strengthened its enforceability and reinforced party autonomy within Arbitration. While limited in scope and duration, Emergency Arbitration plays a crucial role in preserving rights and ensuring that arbitral proceedings remain meaningful and effective.

A primary suggestion is the express statutory recognition of Emergency Arbitrators within the Arbitration and Conciliation Act, 1996. Clear legislative inclusion would remove interpretational

uncertainties and ensure uniform enforcement without requiring judicial intervention for validation. Secondly, there is a need to establish a specific enforcement framework for emergency awards arising from foreign-seated Arbitrations, as the present statutory scheme primarily facilitates enforcement where Part I of the Act applies. Legislative clarity in this regard would further enhance India's position as an Arbitration-friendly jurisdiction. Further, Indian arbitral institutions should continue strengthening procedural timelines, administrative efficiency, and awareness regarding Emergency Arbitration mechanisms so that parties increasingly rely on institutional processes rather than immediate Court intervention under Section 9. Lastly, commercial contracts should consciously incorporate institutional Arbitration clauses providing for Emergency Arbitration, thereby enabling parties to secure urgent relief through Arbitration itself and reducing dependency on judicial remedies.

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